



CHAPTER lxxix.

An Act to extend the time limited for the compulsory purchase of lands for and completion of the railways and works authorised by the South Western and Isle of Wight Junction Railway Act 1901 and for other purposes. A.D. 1904.
[22nd July 1904.]

WHERÉAS by the South Western and Isle of Wight Junction Railway Act 1901 (hereinafter called "the Act of 1901") the South Western and Isle of Wight Junction Railway Company (hereinafter called "the Company") were incorporated and were authorised to construct railways and other works in that Act more particularly described :

And whereas by the Act of 1901 the periods respectively limited for the compulsory purchase of lands for the purposes of and for the completion of the railways and works authorised by that Act were respectively limited to three years and seven years from the date of the passing of that Act which received the Royal Assent on the twenty-sixth day of July one thousand nine hundred and one :

And whereas it is expedient that the periods respectively limited as aforesaid for the compulsory purchase of lands and the completion of the railways and works authorised as aforesaid should be extended as hereinafter provided :

And whereas it is expedient that the period prescribed in the agreement with Keppel Pulteney esquire hereinafter mentioned for the purchase of certain lands for the purposes of the railways and works should also be extended as hereinafter provided :

[Ch. lxi.] *South Western and Isle of Wight* [4 EDW. 7.]
Junction Railway (Extension of Time) Act, 1904.

A.D. 1904. And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title. 1. This Act may be cited as the South Western and Isle of Wight Junction Railway (Extension of Time) Act 1904.

Incorporating Part II. of Railways Clauses Act 1863. 2. The provisions of Part II. (relating to extension of time) of the Railways Clauses Act 1863 are so far as applicable and not expressly varied by this Act incorporated with and form part of this Act.

Extending period for compulsory purchase of lands. 3. The powers granted to the Company by the Act of 1901 for the compulsory purchase or user of lands for the purposes of the railways and works authorised by that Act are hereby revived and extended and may be exercised at any time within but shall not be exercised after the expiration of two years from the twenty-sixth day of July one thousand nine hundred and four.

Extending period for completion of railways. 4. The period limited by the Act of 1901 for the completion of the railways and works authorised by that Act is hereby extended to three years from the twenty-sixth day of July one thousand nine hundred and eight and that period shall for all purposes be deemed to be the period originally limited for the completion of the said railways and works and if the same be not then completed then upon the expiration of that period the powers granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Amending agreement with Keppel Pulteney of Saint Austin's Lymington. 5. The period prescribed in article 9 of the agreement dated the twenty-second day of April one thousand nine hundred and one and made between the Right Honourable Augustus Arthur Earl of Egmont Sir John Blundell Maple baronet Frank Gerard Aman Richard William Evelyn Middleton and Robert Cunninghame Murray of the one part and Keppel Pulteney of Saint Austin's Lymington of the other part within which the Company are to accept a conveyance of the lands agreed to be conveyed is hereby extended for a period of two years from the twenty-sixth day of July one thousand nine hundred and four.

6. The use of electrical power for the working of traffic on the railways shall be subject to the following provisions in addition to the provisions in respect of such use contained in the Act of 1901:—

A.D. 1904.
Plans &c. to be approved by Board of Trade if electrical power is used.

(1) The Company shall from time to time submit for the approval of the Board of Trade plans sections and other details of their proposals relating to such part of the railways as is constructed in tunnel with respect to (A) permanent way (B) platforms (if any) (C) lighting and (D) ventilation and also with respect to such rolling stock as may be for use solely on the railways and such rolling stock and other works shall be constructed and reconstructed only in accordance with plans sections and other details as approved by and shall be maintained to the satisfaction of the Board of Trade:

(2) If the railways be equipped for electric traction subsequently to the opening thereof for passenger traffic the provisions of the Regulation of Railways Act 1842 and the Regulation of Railways Act 1871 with regard to the opening of a railway or railway works for passenger traffic shall apply to the use of any works intended for the introduction of electric traction.

7. Nothing in this Act contained shall exempt the Company or their undertaking from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or the rates for small parcels authorised by any Act relating to the Company.

Provision as to general Railway Acts.

8. All costs charges and expenses of and incident to the preparing for and obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

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